# Standard Practice Guide Policies

## Discrimination, Harassment, and Retaliation

201.89-1

**Applies to:** All Temporary and Regular Faculty and Staff Members

The University of Michigan ("University") is committed to creating and maintaining a safe campus community that is free from unlawful discrimination and harassment. Discrimination and harassment diminish individual dignity and impede equal opportunity and access to students, faculty, and staff in their educational and working environments. The University prohibits unlawful discrimination, harassment, and related retaliation on the basis of race, color, national origin (including actual or perceived shared ancestry or ethnic characteristics),[1] age, marital status, disability, religion, height, weight, or veteran's status, as set forth in SPG 201.35, Nondiscrimination Policy Notice (https://spg.umich.edu/policy/201.35); the University of Michigan Interim Policy and Procedures on Discrimination, Harassment, and Retaliation By Students (the "Student Policy"); and this Policy.[2]

The University has a compelling interest in assuring an environment in which learning and productive work can thrive. Expression that is not protected by the First Amendment may be the basis for corrective action when an employee violates this Policy. The University will not impose sanctions against any employee based on speech or other expression in violation of the law, including the First Amendment, even under circumstances where the protected expression may have given rise to a Hostile Environment. All processes and enforcement under this Policy shall afford people due process as required by law.

This Policy applies to all situations in which an employee is reported to have engaged in Discrimination, Harassment, or Retaliation, as defined below. This Policy applies to employee behavior that occurs on University owned or controlled property or as part of a University program or activity, including academic, extracurricular, or other University-sponsored activities. Conduct that occurs off campus (including online over social media or other digital platforms) may be addressed through this Policy if the conduct could create, based upon the totality of the circumstances, a Hostile Environment within a University program, activity, or employment setting.

A complaint under this Policy may be brought against an employee by the University or by a student, employee, or a third party. If the Respondent is both a student and an employee, the Equity, Civil Rights, and Title IX Office ("ECRT") will determine whether this Policy or the Student Policy applies based upon the facts and circumstances, and whether those circumstances relate more closely to the Respondent's status as a student or an employee.

I. DEFINITIONS

A. DISCRIMINATION AND HARASSMENT

Conduct that is based upon an individual's race, color, national origin (including shared ancestry or ethnic characteristics), age, marital status, disability, religion, height, weight, or veteran's status that:

1. adversely affects a term or condition of an individual's employment, education, or participation in a University activity;
2. is used as the basis for or a factor in a decision affecting that individual's employment, education, or participation in a University activity; or
3. is unwelcome and is sufficiently severe, persistent, or pervasive that it interferes with a reasonable person's employment or participation in a University program or activity ("Hostile Environment"). To create a Hostile Environment, behavior must be deemed severe, persistent, or pervasive from both a subjective and objective standard. In evaluating whether a Hostile Environment exists, the University will consider the totality of known circumstances, including the nature, frequency, intensity, location, context, and duration of the behavior. Although a Hostile Environment is generally created through a series of incidents, for purposes of this Policy, a single severe incident can be sufficient to constitute a Hostile Environment. Conduct need not always be targeted at a particular person in order to create a Hostile Environment for a student or group of students, employee or group of employees, or for other protected individuals.

Consistent with state and federal law, reasonable accommodation will be provided to persons with disabilities and to accommodate religious practices.

B. RETALIATION

Retaliation means conduct that intimidates, threatens, coerces, or discriminates against any individual for the purpose of interfering with any right or privilege secured by Title VI, Title VII, or this Policy, or because the individual has made a report or complaint, testified, assisted, participated, or refused to participate in any manner in an investigation or proceeding under this Policy.

Retaliation may occur in a single incident or a series of incidents and may be subtle or direct. A pattern of conduct or a particular act may constitute Retaliation in one context, but not necessarily in another. An act of intimidation, threat, coercion, or discrimination constitutes adverse action if it is likely to dissuade a reasonable person in the Complainant's position from making or supporting a report or complaint of Discrimination, Harassment, or Retaliation, or from otherwise exercising a right protected by law. Petty slights, minor annoyances, and lack of good manners will not normally constitute adverse actions.

Only the definitions and procedures contained in this Policy may be used to respond to reports or complaints of Discrimination, Harassment, or Retaliation involving employees based on race, color, national origin (including actual or perceived shared ancestry or ethnic characteristics), age, marital status,[3] disability, religion, height, weight, or veteran's status.

II. RESPONSE AND PROCEDURES

A. PREVENTION AND EDUCATION

The University is committed to addressing and ameliorating unlawful Discrimination, Harassment, and Retaliation by or against students, faculty, staff, and third parties who may participate in or attend University programs or activities and in the course of their University employment. To that end, this Policy will be published on the University's ECRT website and ECRT will search University websites and publications at least annually to ensure, to the best of its ability, that information on policies and procedures regarding Discrimination, Harassment, or Retaliation, or links to such policies, procedures, and forms, is correct. Information regarding Discrimination, Harassment, Retaliation and this Policy will be included in orientation materials for new employees and made available in ECRT.

B. RESOURCES

Regardless of whether the University determines that Discrimination, Harassment, or Retaliation occurred, the University will offer resources or assistance to Complainants, Respondents, witnesses, and other affected University community members. If criminal conduct is suspected, the University will report the matter to the University's Department of Public Safety & Security ("DPSS") for on-campus matters and, for other matters, will assist individuals in identifying and contacting external law enforcement agencies. Confidential and Non-Confidential Resources are generally available to offer assistance.

1. CONFIDENTIAL RESOURCES

Confidential Resources are available to provide individuals with assistance, support, and additional information. Confidential resources may not disclose confidential information unless: (1) given permission by the person who disclosed the information; (2) there is an imminent threat of harm to self or others; (3) the conduct involves suspected abuse of a minor under the age of 18; or (4) as otherwise required or permitted by law or court order. Confidential Resources may be required to report non-identifying information to DPSS for crime reporting purposes.

**Ann Arbor Campus including Michigan Medicine**

Sexual Assault Prevention and Awareness Center (https://sapac.umich.edu/) ("SAPAC"): For students, faculty, and staff, SAPAC provides direct support to Complainants, including crisis intervention; advocacy; assistance in navigating academic, personal, medical, and community impact; and referrals to campus and community resources. Phone: (734) 764-7771, 24-hour crisis line (734) 936-3333.

Counseling and Psychological Services (https://caps.umich.edu/) ("CAPS"): For students, CAPS provides a range of clinical services supporting students experiencing concerns such as anxiety, depression, stress, etc. Embedded counselors are available in 18 schools and colleges. Email: caps-uofm@umich.edu (mailto:caps-uofm@umich.edu). Phone: (734) 764-8312 (includes 24-hour service).

Faculty and Staff Counseling and Consultation Office ("FASCCO") (https://hr.umich.edu/benefits-wellness/health-well-being/mental-emotional-health/mental-health-counseling-consultation-services/faculty-staff-counseling-consultation-office-fascco): For central campus faculty and staff, FASCCO provides support and assistance in resolving personal or work-related concerns. Email: fascco@umich.edu (mailto:fascco@umich.edu). Phone: (734) 936-8660.

Office of Counseling and Workplace Resilience (https://hr.umich.edu/benefits-wellness/health-well-being/mental-emotional-health/mental-health-counseling-consultation-services/michigan-medicine-office-counseling-workplace-resilience): For Michigan Medicine faculty, staff, house officers, and medical students, Office of Counseling and Workplace Resilience provides short-term counseling, consultation, support, and information. Email: counseling@med.umich.edu (mailto:counseling@med.umich.edu). Phone: (734) 763-5409.

COMPASS Peer Support Network (https://compass.med.umich.edu/): Operating under the Office of Counseling and Workplace Resilience, COMPASS provides a network or peers supporting Michigan Medicine faculty, staff, and house officers who have experienced difficult events. Email: PeerSupport@med.umich.edu (mailto:PeerSupport@med.umich.edu).

Person of Confidence Program (https://compass.med.umich.edu/): For Michigan Medicine nurses who have experienced sexual harassment or misconduct, the Person of Confidence Program connects nurses with peer supporters who have specialized training in providing emotional support and information related to sexual harassment or misconduct. Email: counseling@med.umich.edu (mailto:counseling@med.umich.edu).

Athletics Wolverine Performance Psychology and Wellness Services (PAWS) (https://mgoblue.com/sports/2017/6/16/athletics-counseling.aspx): For student-athletes, Wolverine PAWS provides clinical mental health services. Email: athleticcounseling@umich.edu (mailto:athleticcounseling@umich.edu). Phone: (734) 647-9656.

Medical School Office of Graduate & Postdoctoral Studies ("OGPS") Counseling & Well-Being (https://medschool.umich.edu/offices/ogps/counseling-well-being): For Medical School doctoral, masters and post-baccalaureate students, and Medical School postdoctoral fellows, OGPS Counseling & Well-Being offers trainees short-term individual counseling on personal, emotional, family and academic/workplace issues.

CEW+ Career and Education Counseling (http://www.cew.umich.edu/counseling/): For students, faculty, and staff, CEW+ provides career and education counseling and other services. For current U-M Ann Arbor students, CEW+ also offers emergency funding counseling. Counseling services within CEW+ are a Confidential Resource. Email: cew.appts@umich.edu (mailto:cew.appts@umich.edu). Phone: (734) 764-6360.

University Ombuds (https://ombuds.umich.edu/): For students, provides a confidential space to talk about campus issues, concerns, problems or disputes with a university office or entity. Email: umstudentombuds@umich.edu (mailto:umstudentombuds@umich.edu). Phone: (734) 763-3545.

University Faculty Ombuds (https://facultyombuds.umich.edu/): For faculty, provides a confidential space to talk about campus issues, concerns, problems or disputes. Email: facultyombuds@umich.edu (mailto:facultyombuds@umich.edu). Phone: (734) 763-2707. Contact information for Unit Faculty Ombuds is available at: https://facultyombuds.umich.edu/unit-ombuds/ (https://facultyombuds.umich.edu/unit-ombuds/).

Staff Ombuds (https://staffombuds.umich.edu/): For staff, provides a confidential space to talk about campus issues, concerns, problems or disputes. Email: staffombuds@umich.edu (mailto:staffombuds@umich.edu). Phone: (734) 936-0600.

University Health Services (https://uhs.umich.edu/) ("UHS"): For students, faculty, and staff, UHS provides comprehensive medical services. UHS also provides a variety of health promotion services for students through Wolverine Wellness (https://wolverinewellness.umich.edu/). Phone: (734) 764-8320.

Spectrum Center (https://spectrumcenter.umich.edu): For students, Spectrum Center is a gender and sexuality resource center and provides a variety of support services to students, as well as education and training. The following staff within Spectrum Center are Confidential Resources:

Director
Associate Director
Support Services and Wellness Advocate
Educational Engagement Program Manager

**Dearborn Campus**

<u>Counseling</u>:

For Students: Counseling and Psychological Services (https://umdearborn.edu/students/counseling-and-psychological-services-caps): (313) 593-5430.

For Faculty and Staff: Faculty and Staff Counseling and Consultation Services (https://hr.umich.edu/benefits-wellness/health-well-being/mental-emotional-health/mental-health-counseling-consultation-services/faculty-staff-counseling-consultation-office-fascco): (734) 936-8660.

<u>Ombuds</u>:

For Students: Ombuds Service (https://umdearborn.edu/students/ombuds-services): (313) 593-5440.

For Faculty: Faculty Ombuds (https://umdearborn.edu/faculty-staff/faculty-senate/faculty-ombuds).

For Staff: Staff Ombuds (https://staffombuds.umich.edu/): (734) 936-0600.

**Flint Campus**

<u>Complainant Support</u>:

For Students: Center for Gender and Sexuality (https://www.umflint.edu/cgs) (Only the Sexual Assault Advocate is Confidential): (810) 762-3300.

Counseling:

For Students: Counseling and Psychological Services (https://www.umflint.edu/caps/counseling-and-psychological-services-caps) ("CAPS"): (810) 762-3456.

For Faculty and Staff: Faculty and Staff Counseling and Consultation Office (https://hr.umich.edu/benefits-wellness/health-well-being/mental-health-counseling-consultation-services/faculty-staff-counseling-consultation-office-fascco/services-dearborn-flint-out-state-faculty-staff): (734) 936-8660.

Ombuds:

For Faculty: Faculty Ombuds (https://www.umflint.edu/provost/resources/).

2. NON-CONFIDENTIAL RESOURCES

Non-Confidential Resources are available to provide individuals with assistance, support, and additional information, but are not designated as confidential. Non-Confidential Resources will generally have an obligation to report information that is shared with them with ECRT. Non-Confidential Resources will make reasonable efforts to respect and safeguard the privacy of the individuals involved. Privacy means that concerns about Prohibited Conduct will only be shared with University representatives, such as ECRT, responsible for assessment, investigation, or resolution of the report or otherwise properly responding to issues raised; to DPSS for crime statistics reporting; and to the extend required by law or court order.

**Ann Arbor Campus including Michigan Medicine**

For Faculty: Academic Human Resources: (734) 763-8938

For Staff: Human Resources: (734) 763-2387

For Michigan Medicine Staff: Michigan Medicine Human Resources: (734) 647-5538

**Dearborn Campus**

For Faculty and Staff: Human Resources: (313) 593-5190

**Flint Campus**

For Faculty and Staff: Human Resources: (810) 762-3150

III. REPORTING

ECRT is responsible for ensuring and monitoring the University's compliance with federal and state nondiscrimination laws. However, an environment free of unlawful Discrimination, Harassment, and Retaliation is the responsibility of every member of the community.

The University can take action only when it becomes aware of problems. Individuals also have the right to pursue a legal remedy for unlawful Discrimination, Harassment, and Retaliation in addition to or instead of proceeding under this Policy.

Below is information about reporting, including reporting obligations, how to make a report under this Policy, and how to report to DPSS.

A. REPORTING OBLIGATIONS

All employees, except for Confidential Resources, and those with an exemption outlined in this Section, are required to share with ECRT details they receive or learn in the scope of their University employment about Discrimination, Harassment, or Retaliation within 48 hours of receiving those details. This obligation does not apply to individuals who believe they may have experienced Discrimination, Harassment, or Retaliation, with respect to reporting their own experience, and they may choose whether or not to report Discrimination, Harassment, or Retaliation firsthand to the University and/or law enforcement and have the right to choose whether to engage with the University if the University receives a report. Employees making a report that does not involve their own experience (i.e., an employee fulfilling their reporting obligation rather than reporting that they believe they have personally experienced Discrimination, Harassment, or Retaliation) must provide their name, title, and contact information when making their report, and can do so by contacting ECRT. Additionally, although not necessarily Employees of the University, the Board of Regents and all individuals regardless of employment status who serve as a coach of a club sports team through Student Life, have reporting obligations.[4]

With respect to student employees, whether the reporting obligation applies depends on the context in which the person learns of the alleged Discrimination, Harassment, or Retaliation. Reporting obligations are triggered for the student employee if the person learned of the alleged conduct in the context of an employee role. Reporting obligations are not triggered if the student employee learned of the alleged conduct in the context of their receipt of an education as a student at the University, i.e., outside of the scope of their University employment.

Failure by an Employee to promptly report to ECRT information they receive about alleged Discrimination, Harassment, or Retaliation may result in corrective action. ECRT will review and make a determination whether an Employee has failed to fulfill their reporting obligation. In the event that ECRT refers to a supervisor a determination that an Employee has failed to fulfill the Employee's reporting obligations for Corrective Action, the supervisor will, in consultation with Staff Human Resources or Academic Human Resources as appropriate, take Corrective Action and provide ECRT with documentation of the Corrective Action and its implementation.

Exempt Disclosures:

Employees may, but are not required to, report to ECRT when incidents of Discrimination, Harassment, or Retaliation are disclosed in the following circumstances:

1. Unless otherwise provided in the Institutional Review Board ("IRB")-approved consent, during a non-minor participant's involvement as a subject in an IRB-approved human subjects research protocol ("IRB Research"); or
2. During a classroom discussion, in an assignment for class, in discussion outside of class, or as part of a research project directly related to the class.

B. REPORTING TO THE UNIVERSITY - CONTACT ECRT

Any individual who is not required to report as set forth above - including persons who believe that they have experienced Discrimination, Harassment, or Retaliation as defined by this Policy - is encouraged to report to ECRT.

ECRT can be contacted by telephone, by appointment, or in person during regular office hours (Monday - Friday: 8:00 am - 5:00 pm), or by email 24 hours a day, 7 days a week. Online reporting is also available on a 24/7 basis. Contact information is as follows:

**Ann Arbor:**
Equity, Civil Rights, and Title IX Office (https://ecrt.umich.edu/about-us/our-team/)
2030 Administrative Services Building
1009 Greene Street
Ann Arbor, Michigan 48109
(734) 763-0235
ecrtoffice@umich.edu (mailto:ecrtoffice@umich.edu)
Discrimination and Harassment Online Reporting Form (https://ecrt.umich.edu/file-a-report/reporting-form/)

**Dearborn:**
Equity, Civil Rights, and Title IX Office (https://umdearborn.edu/equity-civil-rights-and-title-ix-office/meet-ecrt-team)
1080 Social Sciences Building
4901 Evergreen Road
Dearborn, Michigan 48128
(313) 436-9194
ECRT-Dearborn@umich.edu (mailto:ECRT-Dearborn@umich.edu)
Discrimination and Harassment Online Reporting Form (https://umich.qualtrics.com/jfe/form/SV_0Htnok38GR3JDh4)

**Flint:**
Equity, Civil Rights, and Title IX Office (https://www.umflint.edu/ecrt/contact-us/)
303 E. Kearsley Street
1000 Northbank Center
Flint, MI 48502-1950
(810) 237-6517
UMFlintECRT@umich.edu (mailto:UMFlintECRT@umich.edu)
Discrimination and Harassment Online Reporting Form (https://umflint.ut1.qualtrics.com/jfe/form/SV_bkLlhN2wWKWyNbD)

C. REPORTS OF DISCRIMINATION, HARASSMENT, OR RETALIATION BY STAFF MEMBERS IN ECRT OR ECRT'S SUPERVISORY CHAIN ON EACH CAMPUS

To ensure objective investigations and decision-making, reports of behavior covered by this Policy against any staff member of ECRT, or against certain staff members of ECRT's supervising office on each campus, should be made to the Executive Vice President and Chief Financial Officer (EVP/CFO), or their designee. For Ann Arbor and Michigan Medicine this includes concerns regarding the President; the President's staff in the Office of the President (excluding Executive Officers); or an Employee of ECRT. For Dearborn this includes concerns regarding the Chancellor; or an Employee of ECRT. For Flint, this includes concerns regarding the Chancellor; or an Employee of ECRT. Making a report means informing the EVP/CFO about the suspected Discrimination, Harassment, or Retaliation.

When the EVP/CFO receives a report of Prohibited Conduct, the EVP/CFO will assign an impartial and trained Investigator to the matter. The EVP/CFO will also assign a University Employee or external partner to provide appropriate Supportive Measures for the parties throughout the process. The University will strive to complete the investigation using the Policy and Procedures. However, in the limited circumstance that a deviation of process is necessary, the parties will be notified in writing of the process to be used.

The EVP/CFO can be contacted by telephone or in person by appointment during regular office hours (Monday - Friday: 8:00 am - 5 pm) or by email. Contact information is as follows:

Executive Vice President and Chief Financial Officer (https://www.bf.umich.edu/leadership/)
Office for Business and Finance
(734) 764-7272

D. REPORTS TO LAW ENFORCEMENT

**Ann Arbor**: Immediate safety concerns should be reported to DPSS at (734) 763-1131 or by calling 9-1-1.

**Dearborn**: Immediate safety concerns should be reported to the Department of Public Safety ("DPS") at (313) 593-5333 or by calling 9-1-1.

**Flint**: Immediate safety concerns should be reported to the Department of Public Safety ("DPS") at (810) 762-3333 or by calling 9-1-1.

IV. SUPPORTIVE MEASURES

Supportive Measures are individualized services, accommodations, and other assistance that the University offers and may put in place, without fee or charge. Supportive Measures are designed to restore or preserve equal access to the University's programs and activities, protect the safety of all parties and the University's educational and employment environment, and/or deter Discrimination, Harassment, and Retaliation, without being punitive or disciplinary in nature or unreasonably burdening the other party. Additional information about Supportive Measures is available at https://ecrt.umich.edu/get-help-support/supportive-measures/. (https://ecrt.umich.edu/get-help-support/supportive-measures/.)

Supportive Measures are available regardless of whether the matter is reported to the University for the purpose of initiating a proceeding under this Policy and before, after, and regardless of whether a Formal Complaint is filed. Supportive Measures may also be requested by and made available to Respondents, witnesses, and other affected members of the University Community. The ECRT Director, in consultation with relevant administrative offices, is responsible for determining whether the requested Supportive Measures will be made and for coordinating the effective implementation of the Supportive Measures.

Individuals who wish to request Supportive Measures confidentially, without making a report to ECRT, may do so through the Faculty and Staff Counseling Consultation Office (https://hr.umich.edu/benefits-wellness/health-well-being/mental-emotional-health/mental-health-counseling-consultation-services/faculty-staff-counseling-consultation-office-fascco), Michigan Medicine Office of Counseling and Workplace Resilience (https://hr.umich.edu/benefits-wellness/health-well-being/mental-emotional-health/mental-health-counseling-consultation-services/michigan-medicine-office-counseling-workplace-resilience), and other Confidential Resources offering Supportive Measures.

Implementation of Supportive Measures does not suggest that the University has made any decision about the merits of the report or Formal Complaint.

V. RESPONSE TO REPORT, INVESTIGATION, AND PROCEDURES

The University will handle all reports and complaints of Discrimination, Harassment, and Retaliation under this Policy consistently to ensure prompt, equitable, and lawful resolution of such reports and complaints, and will assess whether each reported incident has created a Hostile Environment. The University presumes that reports of Discrimination, Harassment, and Retaliation are made in good faith.

ECRT will handle reports through the following process.

When ECRT receives a report or complaint of alleged conduct which, if true, could constitute Discrimination, Harassment, or Retaliation, as defined in this Policy, then as soon as reasonably possible, generally within 72 hours of receipt, ECRT will:

A. Assess the nature and circumstances of the report, including whether the names and/or any other personally identifiable information for the Complainant, the Respondent, any witnesses, and/or any other individual with knowledge of the reported incident is provided, to facilitate appropriate follow up;

B. Assess the nature of the allegations to identify possible resolution options that may be available and/or to identify other offices that may be appropriate to respond to the report or complaint; and

C. Notify the DPSS of the report if the conduct, as alleged, would constitute a crime.

Once ECRT has performed an initial assessment of a report or complaint, and the alleged conduct, if true, could constitute Discrimination, Harassment, or Retaliation, the matter will be referred for discussion of the appropriate resolution option, as described below. If the alleged conduct would not constitute Discrimination, Harassment, or Retaliation, ECRT will refer the report to Human Resources or another appropriate unit.

When the report or complaint identifies an individual or individuals who may have experienced Discrimination, Harassment, or Retaliation, ECRT will typically contact the individual(s) within 24 business hours to explain ECRT's role in addressing concerns, procedural options, and supportive measures. ECRT will invite the individual(s) to meet to further discuss their options and available

support. The individual's request for a specific course of action and any information they elect to share with ECRT about their experience will be considered when determining the appropriate resolution option.

Resolution options include:

A. Formal Investigative Resolution;

B. Informal Resolution,[5] which could include an educational response or an informational meeting on a voluntary basis, a referral to an appropriate resource for support, and/or an assessment and determination (without a Formal Investigation Resolution) as to whether Discrimination, Harassment, or Retaliation took place and, if so, whether responsive measures were appropriate;

C. Adaptable Resolutions facilitated by the Adaptable Resolution and Restorative Practices Lead or their designee.

D. No action, when requested by the impacted individual(s) and deemed appropriate by the University under the totality of the circumstances.

Any resolution option must be approved by ECRT. Irrespective of the resolution option that is used, ECRT must determine and record whether a Hostile Environment was created for an Employee or group of employees, student or group of students, or for other protected individuals.

If an Employee is represented by a union and the terms of the collective bargaining agreement provide a procedure for pursuing a complaint of Discrimination, Harassment, or Retaliation as defined by this Policy, the terms of the collective bargaining agreement shall prevail.

VI. FORMAL INVESTIGATION PROCEDURES

An impacted individual (Complainant) who would like a formal investigation must submit a formal ECRT complaint form to ECRT for review and approval by the ECRT Director or their designee. Not every report will result in a complaint, which is, beyond notice. a specific request for investigation and adjudication. If a complaint is not approved for formal investigative resolution, the ECRT Director or their designee will review and may determine that a different resolution option is appropriate to address the concerns. If a complaint is approved for formal investigative resolution, the investigation will be conducted by ECRT staff or a designee. Investigations may include collaboration with another office, as appropriate.

The Respondent is presumed not to have violated the Policy unless it is determined through applicable procedures that a preponderance of the evidence supports the finding of a Policy violation. The preponderance of the evidence means the evidence demonstrates it is "more likely than not" that conduct occurred in violation of the Policy.

There are some matters in which a report or complaint involves a Complainant who does not wish to file a complaint or participate in any process (the Complainant is encouraged but not required to participate). The University may pursue a complaint under this Policy without a participating Complainant if the University has sufficient information, or the means of obtaining such information, to proceed, and, in doing so, provide the Respondent with sufficient information and due process to respond to the allegations.[6] In those instances, an ECRT Director or their designee will sign a complaint on behalf of the University and ECRT will initiate an investigative resolution. In such instances, ECRT will notify the Complainant in writing of the initiation of a formal investigative resolution, and that the Complainant may, but is not required to, participate in the formal investigative resolution or in any other actions taken by the University.

The formal investigative resolution process includes the following:

A. ECRT meets with the Complainant for an interview, the Complainant shares information about their experience, and the investigator asks questions. The Complainant has the right to bring an advisor or support person of their choosing, who may be a union representative, to the interview. The Complainant can provide evidence before, at, or following the interview. Following the meeting, ECRT will draft a statement summarizing the Complainant’s concerns. The Complainant will have three (3) calendar days upon receipt to review and provide feedback to their statement summary.

B. ECRT meets with the Respondent for an interview, the Respondent shares information about their experience, and the investigator asks questions. Prior to such a meeting, ECRT will provide the Respondent with a notice that includes the time, place, and nature of the alleged conduct being investigated and the right to bring an advisor or support person of their choosing, who may be a union representative, to the interview. The Respondent can provide evidence before, at or following the interview. Following the meeting, ECRT will draft a statement summarizing the Respondent’s response to the alleged conduct. The Respondent will have three (3) calendar days upon receipt to review and provide feedback to their statement summary.

C. ECRT interviews relevant witnesses and gathers additional information. Each witness has three (3) calendar days to respond to their statement summary. This stage of the process typically takes from 1 - 6 weeks.

D. ECRT provides the Complainant and the Respondent with a preliminary investigation report, which summarizes all relevant information gathered by the investigator. Parties have ten (10) calendar days to review the report and respond. The investigator incorporates any new and relevant information from the parties into the final investigation report.

E. The investigator drafts a final investigation report including an analysis of whether the preponderance of the evidence supports a finding of Discrimination, Harassment, or Retaliation. ECRT reviews the entire final investigation report and findings.

F. ECRT distributes the final investigation report, including the finding as to whether there was Discrimination, Harassment, or Retaliation, to both parties and leadership as appropriate.

The University will strive to complete a formal investigative resolution, which begins with notice to the Respondent that an investigation will be opened and continues through the completion of the investigation and issuance of the final investigation report, within 90 calendar days. The process is designed to move swiftly and efficiently. At any point during the process, however, a party may request or ECRT may elect to reasonably extend a deadline.

Possible outcomes of an investigation under this Policy are:

A. a finding that the allegations could not be substantiated or did not constitute Discrimination, Harassment, or Retaliation, and are therefore dismissed;

B. a finding that the allegations are substantiated and constitute Discrimination, Harassment, or Retaliation, and, if so, referred to the appropriate administrative authority for a determination of the appropriate response based on the nature of the conduct; or

C. a finding that the evidence did not constitute Discrimination, Harassment, or Retaliation, but did substantiate behavior that caused ECRT to believe that the individuals involved would benefit from an educational response or that the behavior was otherwise inappropriate for the workplace and is referred to the appropriate administrative authority for follow up.

If there is a determination of Discrimination, Harassment, or Retaliation, ECRT will coordinate appropriate remedial measures and assess whether the University's overall response was reasonable, considering the totality of the circumstances.

## VII. ADAPTABLE RESOLUTION PROCEDURES

Adaptable Resolution is a voluntary, remedies-based, non-disciplinary structured process between or among affected parties facilitated by trained facilitators that focuses on creating an agreement to address harm and promote accountability. Adaptable Resolution is generally designed to allow a Respondent to acknowledge harm and take responsibility for repairing harm (to the extent possible) experienced by the Complainant and or the University community. Adaptable Resolution must be approved by the ECRT Director and voluntarily consented to by all parties. The University will strive to complete Adaptable Resolution within 90 calendar days from the date that the parties agree to pursue Adaptable Resolution.

Adaptable Resolution processes such as conflict coaching, facilitated dialogue, and restorative justice practices allow individuals involved in a conflict to have significant influence over the resolution process and outcomes. If all persons personally and directly affected by the conflict agree to attempt resolution through one of these processes, and the ECRT Director agrees that Adaptable Resolution is an appropriate form of resolution, then the matter will be referred to the Adaptable facilitator or their designee for review. The nature of some conflicts, especially those involving violence, may render Adaptable Resolution inappropriate.

The Adaptable Resolution options available under this Policy recognize:

A. The goal of Adaptable Resolution is to address Discrimination, Harassment, or Retaliation, identify ways that individuals and/or the community have been harmed, identify unique expressed needs and interests, and develop a written resolution agreement to address the harm and prevent future Discrimination, Harassment, or Retaliation.

B. Participation is voluntary and both the Complainant and the Respondent, as well as any other participating individuals, must consent in writing to participation in Adaptable Resolution.

C. The University will not pressure or compel any party to participate in any particular form of Adaptable Resolution.

D. Adaptable Resolution processes are designed to address harm and prevent additional potential harm. The Adaptable facilitator may, in their judgment, discontinue an Adaptable Resolution process when they determine that one or more of the parties have been coerced; where the Adaptable Resolution process is not progressing in a reasonably timely manner due to party delay or lack of engagement; or the Adaptable Resolution process may not have the intended effect.

E. The statements made by parties in Adaptable Resolution by and between the parties may not be used in any other University process, including another resolution process under this Policy.

The Adaptable Resolution process includes the following:

A. ECRT meets with the Complainant for an intake, the Complainant expresses an interest in Adaptable Resolution.

B. ECRT consults with the Adaptable facilitator or their designee who will determine whether the matter is appropriate for Adaptable Resolution. If so, ECRT meets with the Respondent to inquire whether the Respondent chooses to participate in Adaptable Resolution.

C. If the parties are in agreement to explore resolution through the Adaptable Resolution process, parties meet with the Adaptable facilitator or their designee who will work toward resolution.

D. If the process achieves voluntary written resolution agreement between the parties, the matter is closed. Where parties do not come to a written resolution agreement and/or disengage from the Adaptable Resolution, the matter is referred to the ECRT Director or designee who will assess and determine appropriate next steps.

Participation in the Adaptable Resolution is voluntary and may or may not result in a written resolution agreement or resolution. When a mutually satisfactory written resolution agreement is signed by both parties and approved by the ECRT Director, the case is resolved. Resolutions reached through Adaptable Resolution may not be appealed.

A mutual voluntary resolution agreement may include any terms that the parties mutually and voluntarily agree to and which the ECRT Director approves.

Any written resolution agreement reached in Adaptable Resolution must be documented by the Adaptable facilitator and approved by the ECRT Director or designee to ensure consistency with the University's obligations under this Policy. An agreement will not be considered valid if the ECRT Director or designee does not approve it.

If the ECRT Director or designee approves a written resolution agreement after the parties have voluntarily reached consensus as to its terms, the parties will be required to comply with the written resolution agreement. Typically, a written resolution agreement also includes agreed upon consequences for instances when obligations under the agreement are not fulfilled. Should the process transition to an investigative resolution, information obtained through the Adaptable Resolution process may not be utilized in the formal investigative resolution. Once the ECRT Director approves a written resolution agreement, the parties are bound by its terms and cannot return to formal investigative resolution.

If resolution is not achieved through an attempt at Adaptable Resolution and the matter involves a potential Policy violation, the Respondent has the choice of accepting responsibility and entering into an agreement or proceeding through the formal investigative process.

To fairly assess pattern or systemic behavior, the ECRT Director will maintain records of all reports and complaints referred to Adaptable Resolution.

## VIII. CORRECTIVE ACTION

Corrective actions are designed to promote the University's educational mission, as well as to protect the University's employment environment, including promoting safety or deterring employees from behavior that harms or threatens the workplace and broader University community. Some behavior is so harmful to the University community or deleterious to the educational process and/or the working environment that it may require more serious corrective actions, such as suspension or termination of employment.

Before the University takes appropriate corrective action, the Respondent's supervisor or other appropriate University administrator will review the findings of fact and communicate the corrective action with the employee within a reasonable time after ECRT's process is completed.

Corrective action(s) may include, but is not limited to, one or more of the following: a reprimand, denial of a merit pay increase, reassignment, suspension, and/or referral to a Disciplinary Review Conference when serious corrective action such as termination is being considered. If the accused is a faculty member to whom Regents' Bylaw 5.09 applies, the Provost or executive authority of the relevant unit may initiate the procedures of Bylaw 5.09 at any stage in the process, if the circumstances indicate that such action is warranted. For non-faculty this Policy does not prohibit the institution of corrective action at any stage in the process, if the circumstances indicate that such action is warranted.

In the absence of, or in addition to, the corrective action detailed above, the University may implement educational or training measures and/or offer other optional remedial measures designed to address Discrimination, Harassment, or Retaliation, prevent its recurrence, and remedy its effects on the Complainant and any other affected individuals.

## IX. RECORDKEEPING, DATA ANALYSIS, AND TREND IDENTIFICATION

All documentation generated during the course of the University's evaluation of and response to reports under this Policy will be maintained pursuant to the University's standard document retention protocol, including, as applicable: attempts to determine the identity(ies) of parties involved in reported incidents, if not known by the reporter; notes of interviews of parties or witnesses; documentary evidence collected; documentation of any supports offered or granted to parties or third parties; investigative reports; outcome notices; determinations of whether a Hostile Environment arose; and final corrective actions and remedial measures for parties or others impacted.

ECRT will look back at available data at least annually, including reviewing reports received (whether investigated or substantiated) and findings of Discrimination, Harassment, or Retaliation, to see if any patterns, recidivism, or collective incidents exist that may warrant additional inquiry or response campuswide or in specific programs or activities – including when the conduct occurred off campus (including online over social media or other digital platforms) – to ensure that the University responds appropriately to any Hostile Environment that arises in a University program or activity.

[1] Discrimination and harassment based on actual or perceived shared ancestry or ethnic characteristics can take a wide variety of forms. For examples of conduct prohibited under the law, community members may consider the examples provided by the United States Department of Education's Office for Civil Rights beginning at page 6 of this guidance document (https://www.ed.gov/sites/ed/files/about/offices/list/ocr/letters/colleague-202405-shared-ancestry.pdf): (See, e.g., "Speech expressing views regarding a particular country's policies or practices is protected by the First Amendment and does not necessarily implicate federal civil rights laws. However, if harassing conduct that otherwise appears to be based on views about a country's policies or practices is targeted at or infused with discriminatory comments about persons from or associated with a particular country, then it may implicate Title VI and should be analyzed on a fact-dependent basis").

[2] This Policy is intended to co-exist, and not conflict, with other specific University policies. The University prohibits discrimination on the basis of sex (sexual orientation, gender identity, gender expression, and pregnancy). Those forms of sex-based or gender-based discrimination and harassment are not covered by this Policy are are instead addressed in SPG 601.89, Policy on Sexual and Gender-Based Misconduct (https://spg.umich.edu/policy/601.89). This Policy governs harassment, discrimination, and related retaliation on the basis of a protected class set forth in Section I of this Policy.

[3] Under some circumstances, reports or complaints of discrimination or harassment based on marital status may be addressed under the University's Policy on Sexual and Gender-Based Discrimination and Pregnancy, effective August 25, 2025.

[4] An Employee in the Office of the Vice President and General Counsel is not required to report if they become aware of Discrimination, Harassment, and/or Retaliation through privileged and confidential communications.

[5] Informal Resolutions and Adaptable Resolutions do not result in sanctions.

[6] The University may choose to pursue a report without a participating Complainant based on the nature and circumstances of the reported conduct, the impact of the conduct on the community or the University, maintenance of a safe and inclusive environment, or other relevant factors at the discretion of the University.

**Notes**

Changes were made to this SPG in September 2025 to add updated procedures and updated reporting obligations.

Changes were made to this SPG in March 2022 to reflect revisions to SPG 601.89, the Policy on Sexual and Gender-Based Misconduct, and changes from the Office for Institutional Equity to the Equity, Civil Rights and Title IX Office.

Changes were made to this SPG in August 2020 to reflect the new SPG, 601.89 and the Interim Policy on Sexual and Gender-Based Misconduct.

Changes were made to this SPG on Feb. 23, 2018, to reflect changes to the names of the University's employee assistance programs: Faculty and Staff Counseling and Consultation Office and Michigan Medicine Office of Counseling and Workplace Resilience.

**SPG Number:**
201.89-1

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October 1, 1992

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September 2, 2025

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September 2, 2026

**Applies To:**
All Temporary and Regular Faculty and Staff Members

**Owner:**
University Human Resources; Office of the Provost and Executive Vice President for Academic Affairs

**Primary Contact:**
Equity, Civil Rights and Title IX Office

**Related Policies:**

Discipline (/policy/201.12)
Employee-Student Relationships (/policy/601.22-1)
Grievance Procedure and Dispute Resolution (/policy/201.08)
Non-Discrimination (/policy/201.35)
Policy on Sexual and Gender-Based Misconduct (/policy/601.89)
Professional Standards for Faculty (/policy/201.96)
Prohibitions Regarding Sexual, Romantic, Amorous, and/or Dating Relationships Between Teachers and Learners (/policy/601.22)
Protection from Retaliation (/policy/601.90)
Responsible Use of Information Resources (/policy/601.07)
Supervisor-Employee Relationships (/policy/201.97)
Violence in the University Community (/policy/601.18)

**Related Links:**

Regents Bylaw 5.09 (https://regents.umich.edu/governance/bylaws/chapter-v-the-faculties-and-academic-staff/)

Faculty Grievance Procedures (https://hr.umich.edu/working-u-m/my-employment/academic-human-resources/faculty-grievance-procedures)
U-M Ann Arbor Statement of Student Rights and Responsibilities (https://oscr.umich.edu/statement)
U-M Dearborn Student Rights & Code of Conduct (https://umdearborn.edu/about/policies-and-procedures/student-affairs-policies-and-procedures/student-rights-code-conduct)
U-M Flint Code of Student Conduct and Policies (https://www.umflint.edu/deanofstudents/code-of-conduct/)
Sexual Misconduct Reporting and Resources website (https://sexualmisconduct.umich.edu/)
Ethics, Integrity, and Compliance website (https://compliance.umich.edu/)

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